IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.
Plaintiffs,
vs.
MARC M. MOSZKOWSKI
Defendant.

Case No.: 2018 CA 000543
Division: "E"

NOTICE OF FILING DEFENDANT'S MOTION TO VACATE DEFAULT FINAL JUDGMENT

COMES NOW Defendant, Marc Moszkowski, pro se, and hereby gives notice of filing the attached Motion to Vacate Default Final Judgment, submitted pursuant to Florida Rules of Civil Procedure 1.540(b) and in furtherance of Defendant's constitutional and procedural rights.

Said Motion is based on consolidated grounds including unrebutted factual misrepresentations, statutory limitations violations, lack of corporate standing, denial of mandatory representation under corporate bylaws, and a fundamental deprivation of due process culminating in entry of default.

This filing is made prior to the entry of any final judgment in this matter and is intended to preserve all rights of review and objection should such judgment be imminently entered.

Respectfully submitted this 17th day of July, 2025.

Marc Moszkowski, Pro Se
Email: m.moszkowski@deepgulf.net
Le Verdos
83300 Châteaudouble, France

M. Moszkowski

CERTIFICATE OF SERVICE

I hereby certify that, on this 17th day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Moszkowski

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DEFENDANT'S MOTION TO VACATE DEFAULT FINAL JUDGMENT ON GROUNDS OF PRIOR FEDERAL ADJUDICATION, IRRECONCILABLE PROCEDURAL CONFLICT, AND OMISSION OF DISPOSITIVE DEFENSES

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully moves this Honorable Court to vacate its Default Final Judgment entered in this matter, and in support states as follows.

A. PREFATORY STATEMENT ON ACCESS TO JUSTICE

This filing is made pro se, not from preference but from necessity, and in the spirit of the foundational premise that justice in these United States is not proprietary to the licensed, but belongs equally to the governed, including those upon whom jurisdiction is claimed.

As a half-owner and director of the Plaintiff corporation, and as a party compelled into this litigation without access to corporate representation or resources to obtain independent counsel, Defendant asserts his right to due process as one of the governed.

B. INTRODUCTION

This Motion does not yet address the underlying factual disputes at the core of this litigation. It instead raises threshold legal defects in the Court's handling of this matter—specifically, the entry of a dispositive judgment:

- without evidentiary hearing,
- without testimony or findings of fact,
- and critically, **without any acknowledgment of dispositive legal defenses fully adjudicated in prior federal litigation** involving the same parties, same claims, and substantially identical pleadings.

C. GROUNDS FOR VACATUR

I. Conflict with Final Federal Adjudication on the Merits

On January 27, 2020, the United States District Court for the Northern District of Florida granted summary judgment in Defendant's favor on every substantive claim—including fraud, unjust enrichment, and conversion—on the grounds of the statute of limitations. The only remaining issue was a narrow claim concerning ownership of intellectual property, namely patents. This issue was largely moot, as the patents had expired due to Plaintiffs' failure to pay maintenance fees—except for one patent that remained valid because a third-party inventor paid the necessary fees. No damages were sought or awarded, and no findings were made. The Eleventh Circuit later remanded the case to federal court and then to state court, based on a misapprehension of jurisdictional facts. There was no surviving claim for unjust enrichment, and domain names were not at issue.

Plaintiffs then refiled functionally identical claims in this state forum. Despite the statutory bar having already been recognized and adjudicated in the federal forum, this Court entered judgment on those same claims, without ever referencing—let alone addressing—the prior ruling or the statute of limitations.

II. Complete Judicial Silence on Statute of Limitations Defense

Defendant raised the same statute of limitations arguments in early filings before this Court—including as an Affirmative Defense, in sworn declarations, and in multiple dispositive motions. The Court never acknowledged the issue in any of its orders, including its denial of summary judgment, its February 25, 2025 ruling, or in the Default Final Judgment.

While most published decisions involving unadjudicated statute of limitations defenses arise in the context of summary judgment, the principle that dispositive affirmative defenses must be addressed before judgment issues applies more broadly. See *Fini v. Glascoe*, 936 So. 2d 52 (Fla. 4th DCA 2006); *Hernandez v. United Auto. Ins. Co.*, 730 So. 2d 344 (Fla. 3d DCA 1999).

Florida law recognizes that even where a defendant defaults procedurally, a default judgment should not be entered when the pleadings or record affirmatively disclose a legally dispositive defense. Where the Court strikes a party's pleadings but fails to consider a previously raised limitations defense—particularly one supported by the record and unrebutted—it risks committing reversible error.

III. Howard's Delayed Discovery Claim Is Refuted by Both Actual and Constructive Knowledge

Plaintiff Rustin Howard's assertion that he did not understand the 2014 financial spreadsheets and bank statements due to the presence of French terms is not only facially absurd—it is disproven by the documentary record and by his own conduct as Chairman of the Board of DeepGulf, Inc.

The documents at issue were intelligible, clearly structured, and included amounts in U.S. dollars with identifiable transaction dates, payors, and recipients. The 2014 French bank statements, specifically, disclosed transfers to Defendant totaling $345,000. Even assuming arguendo that Howard could not decipher certain column headings, his failure to inquire into such large transfers—plainly visible in the statements—is both professionally negligent and legally indefensible.

But that $345,000 was only part of the picture. The remaining $959,764.22 in disbursements—making up a total of $1,304,764.22 paid to the directors of Toke Oil & Gas S.A.—was disclosed separately in 2011 and 2012 through English-language spreadsheets, internal accounting summaries, and financial statements that Howard personally received, acknowledged, and used. He did not simply receive these disclosures passively: he relied on them to draft the 2012 Private Placement Memorandum (PPM) in full, incorporating revenue, expense, and income data sourced directly from these materials.

Furthermore, even if Howard's sworn declaration disclaiming authorship of the PPM were taken at face value—which it should not be, given the record—his own actions still confirm direct engagement. Email records demonstrate that Howard personally circulated the 2012 Private Placement Memorandum, sent it to prospective investors, and coordinated follow-up communications. If Defendant—rather than Howard—had drafted the PPM, that only worsens Howard's position: as the Ivy League MBA and Chairman of the Board, he bore the primary fiduciary duty to verify the accuracy of investor disclosures. His subsequent silence, use, and distribution of the document—without objection or correction—bind him to its contents as a matter of law.

Despite this, Howard now claims he did not know who the directors of Toke were until late 2017—when he supposedly discovered what he called "the smoking gun." That claim is not merely implausible; it is refuted by the very documents he used in his fiduciary capacity to solicit investment. It is also contradicted by the 2008 Shareholders Agreement, by routine corporate correspondence, and by Howard's own later litigation filings, which replicate director salary figures down to the cent.

Moreover, Howard personally received nearly $1.4 million in revenue from Toke into DeepGulf accounts between 2008 and 2012—well before Toke was nominally acquired in 2013 for $100,000. As a matter of law and corporate duty, Howard could not have accepted such funds without knowledge of the entity's leadership, especially since the acquisition itself required identification of the transferors—who were the same three individuals (Moszkowski, Ximenes, and Favaro) that received the disclosed director salaries.

Thus, either Howard was lying when he denied knowledge of the financials he himself distributed to raise capital, or he was so grossly negligent and inattentive as to disqualify any claim of delayed discovery. In either case, the statute of limitations bars this action, and the Court's failure to address that defense requires reversal.

The legal standard is clear: constructive knowledge bars delayed discovery where a party had access to relevant facts and failed to act. Howard had both actual and constructive notice. His subsequent claims—whether rooted in dishonesty or dereliction—do not toll the statute of limitations.

The Circuit Court's refusal to adjudicate this defense, despite the uncontested documentary record and prior federal dismissal on limitations grounds, constitutes fundamental error and a denial of due process. The default judgment must be vacated.

IV. Corporate Standing Destroyed by Conflict, Dual Control, and Breach of Bylaws

Defendant is not a third-party wrongdoer. He is—and has always been—a ~50% shareholder and duly appointed Director of both Plaintiff entities: DeepGulf, Inc. and Toke Oil & Gas, S.A. This structural reality renders the entire lawsuit defective from inception.

At no time did either Plaintiff obtain a lawful corporate resolution authorizing this litigation. No shareholder vote was held. No disinterested majority of directors approved the action. The Board of DeepGulf, Inc. consisted, and reportedly still consists, of solely Howard, Johnson, and Defendant. As for the Board of Toke Oil and Gas S.A., such as it is, it consists solely of Defendant and Howard—neither of whom may act unilaterally on behalf of the company against the other. As such, this lawsuit represents one half of a company attempting to sue the other half, without corporate authority, and using corporate assets to do so. This is corporate abuse and legal nonsense.

More egregiously, the Bylaws of DeepGulf, Inc.—never amended, never repealed—expressly entitle all Directors to:

- Indemnification for actions taken in the scope of corporate duties, and
- Advancement of litigation expenses, including legal counsel and mediation costs.

Defendant repeatedly invoked these provisions in writing. Plaintiffs and their counsel simply ignored them. As a direct result, Defendant—indigent and pro se—was denied not only legal representation, but access to meaningful participation at trial, leading to the entry of a default judgment. The injustice is complete.

Meanwhile, Plaintiffs' Howard—serving as Chairman—expended large sums of corporate funds to pursue this action, in violation of both fiduciary duty and fundamental corporate fairness. If any part of those funds were obtained from third-party sponsors, the matter is even more troubling: the Court has been misled into believing this to be a valid corporate grievance, when it is in truth a personal vendetta disguised in corporate form.

Furthermore, any damages claimed or awarded would be partially owed to Defendant himself, as ~50% shareholder. This renders the entire action circular, nonjusticiable, and deeply improper.

V. Additional Parties' Liability and Judicial Enabling of Fraud

While Plaintiff Rustin Howard bears principal responsibility for the factual misrepresentations, omissions, and implausible claims upon which this lawsuit was founded, the record compels scrutiny of those who enabled or ignored these defects.

DeepGulf's second director, Thomas Johnson, remained silent despite being a fiduciary officer and presumed signatory to major corporate actions. He did not object to the filing of suit without Board resolution. He did not question the implausible denial of knowledge by Chairman Howard—despite personally receiving or having access to the same materials. He allowed the corporate bylaws to be breached in ways that jeopardized shareholder rights and structural legitimacy.

The unnamed sponsor (or sponsors) who funded the litigation, if not directly complicit in the presentation of false evidence, must have been aware that it was financing a lawsuit brought in the name of a company half-owned by its opponent. That individual or entity has effectively usurped corporate decision-making authority from the actual shareholders and officers, turning the corporation into an instrument of private vengeance or speculative gain. Any recovery achieved under these conditions would be voidable and unlawful.

Attorney Braden K. Ball, as an officer of the Court, bore an affirmative duty not to pursue claims that were barred by prior federal judgment, that ignored clear statute of limitations defenses, and that relied upon demonstrably false factual assertions. If Mr. Ball did not review the record, he acted with reckless disregard. If he did, he has knowingly perpetuated fraud. Either posture is sanctionable.

Finally, the Court itself has repeatedly enabled this abuse of process. It denied Defendant's right to participate remotely despite uncontested medical and financial impossibility. It ignored dispositive defenses raised in dozens of filings. It enforced mediation costs against a 50% owner without addressing the corporate obligation to cover those expenses. And it struck pleadings and entered default without ever evaluating whether the claims themselves were legally sustainable or factually coherent.

These cumulative failures have not only prejudiced the Defendant—they have undermined the legitimacy of the proceedings. Judicial authority cannot function as a conduit for one faction of a corporation to sue the other in bad faith, on false pretenses, without internal authorization, and then obtain judgment by default.

Where litigation has been enabled by fiduciary breach, prosecutorial abuse, and judicial silence, the resulting judgment is void in equity and law.

Vacatur is not merely warranted; it is required to restore the integrity of the forum.

VI. Denial of Procedural Due Process

Defendant filed over 170 detailed pleadings, evidentiary exhibits, and legal memoranda. Despite extensive documentation, the Court:

- Refused to allow remote trial appearance despite medical disability, indigency, and 5,000-mile distance;
- Entered default judgment in Defendant's absence without hearing or findings;
- Delegated drafting of the final judgment to opposing counsel;
- Failed to rule on critical pending motions and objections;
- And issued a dispositive judgment while remaining entirely silent on core defenses.

These omissions violate fundamental principles of due process and judicial impartiality, and render the judgment procedurally infirm and constitutionally invalid.

As Justice Frankfurter aptly observed, "*The safeguards of liberty have frequently been forged in controversies involving not very nice people*."

United States v. Rabinowitz, 339 U.S. 56, 69 (1950) (Frankfurter, J., dissenting). Defendant does not concede being unworthy of judicial protection, but underscores that even those cast in an unfavorable light—whether by prejudice, litigation strategy, or circumstance—are not excluded from the Constitution's reach. Due process is not reserved for the popular or the privileged. It is precisely when the process is strained or the parties disfavored that the judiciary must show its fidelity to first principles. A default judgment obtained through procedural imbalance, selective inattention to dispositive defenses, and economic exclusion cannot stand in a system committed to equal justice under law.

WHEREFORE, the judgment below must be vacated. The record reveals not a legitimate corporate lawsuit, but an **abuse of process by conflicted insiders**, in which Defendant was deprived of his rights both as litigant and as corporate officer and shareholder.

Respectfully submitted this 17th day of July, 2025.

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M. Moszkowski

CERTIFICATE OF SERVICE

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M. Marszkowski